

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX**

-----X
EDWIN MORANTE,

Plaintiff

- against -

**THE CITY OF NEW YORK and
POLICE OFFICER NELSON PENA
(shield # 00817)**

Defendants.
-----X

Index No.

Purchased

9-11-18

Plaintiff designates Bronx
County as the place of trial

The basis of the venue is
where the tort arose

SUMMONS

TO THE ABOVE NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, NY
September 11, 2018



THE LAW OFFICES OF ELLIOT S. KAY

Attorney for Plaintiff
115 East 57th Street, 11th Floor
New York, New York 10022
(212) 939-7251

Defendant's Address:
**CORPORATION COUNSEL OF THE
CITY OF NEW YORK**
100 Church Street
New York, New York 10007

**SUPREME COURT OF THE STATE OF NEW YORK
BRONX COUNTY****EDWIN MORANTE****Plaintiff,****Index No.****Verified Complaint****- against -****THE CITY OF NEW YORK and
POLICE OFFICER NELSON PENA
(shield # 00817),****Defendants.**

Plaintiff EDWIN MORANTE, by his attorneys THE LAW OFFICES OF ELLIOT S. KAY, by ELLIOT S. KAY, principal, complaining of the defendants, respectfully shows to this Court and alleges the following upon information and belief:

PARTIES

1. At all times hereinafter mentioned, Plaintiff EDWIN MORANTE was a resident of Bronx County, City and State of New York.
2. At all times hereinafter mentioned, defendant THE CITY OF NEW YORK ("CITY"), was and still is a municipal corporation organized and existing under and by virtue of the laws of the State of New York.
3. At all times hereinafter mentioned, THE NEW YORK CITY POLICE DEPARTMENT ("POLICE"), was and is an agency of defendant CITY.
4. At all times hereinafter mentioned, defendant POLICE OFFICER NELSON PENA (shield # 00817) ("P.O. PENA"), was and is a police officer employed by Defendants.

BACKGROUND

5. On July 20, 2017, at approximately 1:50 p.m., in the vicinity of 1564 White Plains Road in Bronx County, without just cause or provocation, the Defendants, including P.O. PENA, handcuffed Plaintiff and intentionally and falsely accused Plaintiff of having committed the crime of Criminal Sale of Marijuana in the 4th Degree and related charges.
6. On or about July 20, 2017, a criminal complaint was issued at the directive of the Defendants and a criminal action against Plaintiff commenced.
7. Plaintiff remained in custody until he was released on or about July 21, 2017.
8. Plaintiff had to defend against false charges until the criminal matter was terminated in favor of Plaintiff on July 11, 2018.

PROCEDURAL POSTURE

9. On July 11, 2018, Plaintiff served an Amended Notice of Claim in writing sworn to on Plaintiff's behalf upon Defendant CITY, by delivering a copy thereof to the officer designated to receive such process personally, which Notice of Claim advised the Defendant of the nature, place, time, and manner in which the claim arose, and the items of damage and injuries sustained so far as was then determinable.
10. More than thirty days have elapsed since service of said notice and defendant CITY has failed to pay or adjust this claim.
11. A 50-H hearing has been held.
12. This action has been commenced within one year and ninety days after the cause of action of Plaintiff accrued.
13. Plaintiff has duly complied with all conditions precedent to the commencement of this action.

FIRST CAUSE OF ACTION: FALSE IMPRISONMENT

14. Paragraphs 1-13 are incorporated by reference as fully set forth herein.
15. Plaintiff was aware of Plaintiff's arrest and confinement as described in paragraphs 5-7, and Plaintiff did not consent to that arrest or confinement.
16. The Defendants intended to confine Plaintiff and the confinement was not privileged or authorized by any warrant, order, or other legal right.
17. As a result of being falsely imprisoned by the Defendants, Plaintiff sustained multiple injuries. Plaintiff was denied liberty and Plaintiff suffered emotional distress, humiliation and fear and intimidation for Plaintiff's safety.

SECOND CAUSE OF ACTION: MALICIOUS PROSECUTION

18. Paragraphs 1-17 are incorporated by reference as though fully set forth herein.
19. In arresting Plaintiff, the Defendants acted with malice. The Defendants lacked probable cause to arrest Plaintiff.
20. All charges pending against Plaintiff were dismissed and sealed upon the application of the District Attorney on July 11, 2018.
21. As a result of being maliciously prosecuted by the Defendants, Plaintiff sustained multiple injuries, including loss of liberty, emotional distress, humiliation, loss of enjoyment of life, and fear and intimidation for Plaintiff's safety.

THIRD CAUSE OF ACTION: BATTERY

22. Paragraphs 1-21 are incorporated by reference as though fully set forth herein.
23. When P.O. PENA grabbed Plaintiff and arrested Plaintiff, he subjected Plaintiff to a harmful or offensive bodily contact. P.O. PENA intended to make that contact without the consent of Plaintiff.

24. As a result of being battered by P.O. PENA, Plaintiff sustained multiple injuries, including loss of liberty, emotional distress, humiliation, loss of enjoyment of life, and fear and intimidation for his safety.

FOURTH CAUSE OF ACTION: ASSAULT

25. Paragraphs 1-24 are incorporated by reference as though fully set forth herein.

26. P.O. PENA, acting as the agent, servant and employee of the Defendants, placed Plaintiff in apprehension of imminent harmful or offensive contact.

27. As a result of being assaulted by P.O. PENA, Plaintiff sustained multiple injuries, including emotional distress, humiliation, loss of enjoyment of life, and fear and intimidation for his safety.

WHEREFORE, Plaintiff demands judgment against the Defendants, together with the costs and disbursements of this action in the amount of damages greater than the jurisdictional limit of any lower court that would otherwise have jurisdiction, together with attorneys' fees and costs for bringing this case, and punitive damages.

Dated: New York, NY
September 11, 2018

Yours, etc.,

THE LAW OFFICES OF ELLIOT S. KAY



BY: ELLIOT S. KAY, ESQ.
Attorney for Plaintiff
115 East 57th Street, 11th Floor
New York, NY 10022
212-939-7251

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX****EDWIN MORANTE,**

Plaintiff

-against-

**CITY OF NEW YORK and
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(shield # 00817),**

Defendants

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I, **ELLIOT S. KAY**, an attorney admitted to practice in the courts of New York State, state that I am the attorney of record for Plaintiff in the within action; I have read the foregoing and know the contents thereof; the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and as to those matters I believe it to be true. The reason this verification is made by me and not the Plaintiff is because Plaintiff resides outside the county where deponent maintains his office.

I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: New York, NY
September 11, 2018



ELLIOT S. KAY